

Patient Abuse / Harassment Policy

Ensuring Safety from All Forms of Abuse and Misconduct

Regulation: 42 CFR §482.13(c)(3) | §482.13(e)

POLICY OVERVIEW

Hospitals have a non-delegable duty to protect patients from abuse, neglect, and harassment by any source, including staff, other patients, and visitors. Zero-tolerance policies must be clearly communicated, consistently enforced, and supported by robust reporting and response systems.

KEY REQUIREMENTS

1 Definitions and Prohibited Conduct

Policy must clearly define: physical abuse, verbal abuse, psychological abuse, sexual abuse, neglect, exploitation, and harassment. All forms are prohibited. Patients must be informed of their right to be free from abuse as part of the Patient Rights notice.

2 Reporting Obligations

All staff, volunteers, and contractors have a mandatory duty to report suspected or witnessed abuse. Reports must be made immediately through established channels. Mandatory reporting to state and local authorities must comply with applicable law.

3 Investigation Protocol

All allegations must be investigated promptly by individuals who are objective and independent of the accused. Investigation findings must be documented. Accused staff must be removed from patient care pending investigation outcome.

4 Victim Support

Victims of abuse must receive immediate protection, appropriate clinical care, emotional support, and access to advocacy resources. Incidents must be handled with sensitivity and confidentiality.

5 Corrective Action

Substantiated abuse by staff must result in appropriate disciplinary action up to and including termination. State licensing board notification and OIG exclusion database reporting must occur as required.

COMPLIANCE NOTES

Background checks must be performed on all staff, volunteers, and contractors before hire. The OIG exclusion database must be checked monthly. A culture that encourages reporting and protects reporters from retaliation is essential.

COMMON SURVEY CITATIONS

Cited under §482.13(c)(3) – Right to be free from restraints, and §482.13(e)(1) – Right to care in a safe setting free from abuse.